

CLAIMANT'S SUPPLEMENTAL NOTE

Custodial Handling of Imerman Devices (For the Record)

Zahmoul v Secretary of State for Justice & HMCTS

Administrative Court reference: **AC-2025-LON-004293**

1. Purpose of this Note

1. This Supplemental Note is filed for the limited and specific purpose of placing on the Court record recent correspondence concerning the **custodial handling of electronic devices seized and retained pursuant to court process (“Imerman devices”)**, as referred to at **Grounds 3 and 4** of the Amended Grounds of Claim dated **2 January 2026**.
2. The Claimant does **not** invite the Court at this stage to determine the substance of any criminal allegations, nor to adjudicate any dispute between private parties.
3. The material is relied upon solely to evidence the **continued absence of any identifiable administrative audit trail, custodial decision, or lawful handling process** in respect of court-controlled evidential material.

2. Background (brief)

4. During the family proceedings, electronic devices containing material of potential criminal relevance were seized and retained pursuant to court process, engaging

established **Imerman safeguards** and public-law duties relating to custody, review, and lawful disposal.

5. The Amended Grounds plead that no lawful or transparent administrative process was operated to account for, safeguard, or determine the handling of those devices.

3. Recent correspondence

6. On **12 January 2026**, the Claimant wrote to **Hughes Fowler Carruthers LLP**, responding to a request for clarification as to the custody of the Imerman devices.
7. In that correspondence:
 - the Claimant was informed that she should “take up” the matter with the Respondent;
 - the Claimant responded that this was **legally incorrect**, explaining that once devices are taken into custody pursuant to court process, responsibility for safeguarding, audit, and lawful handling **does not rest with a private party** and cannot be displaced by administrative deflection.
8. The correspondence confirms that, notwithstanding repeated requests, **no custodial account, audit trail, or administrative decision has been identified or provided** by any court body or State authority.

4. Relevance to the pleaded claim

9. The correspondence is filed:

- to demonstrate that the issue has been **formally raised and articulated on correct legal grounds;**
- to evidence the **continuing nature of the alleged administrative failure** pleaded at Grounds 3 and 4;
- and to preserve the public-law record concerning **evidential integrity, accountability, and court administration.**

10. The Claimant maintains that the **loss, non-handling, or administrative suppression of serious material placed before the court** is itself a matter of public-law importance, irrespective of the outcome of this claim.

5. Scope

11. This Note is filed for the record only.

The Claimant seeks no determination of these matters at the permission stage beyond recognition that they form part of the pleaded public-law context.

Exhibit:

- Claimant's letter to Hughes Fowler Carruthers LLP dated **12 January 2026**

Nadia Zahmoul

Claimant (Litigant in Person)

15 January 2026

Thank you. Given everything you've said about **bullet-proofing the public record**, the **correct choice is to do BOTH**, but in a **controlled, orthodox way**:

Integrate a brief reference into the Reply

AND

File a separate 1-page Supplemental Note with the correspondence attached

That way:

- the **Reply** preserves the issue in the permission decision itself, and
- the **Supplemental Note** ensures the **documentary trail is formally on the court record**, inquiry-ready, even if permission is refused.

Below is the **exact 1-page Supplemental Note**, drafted **precisely as it should be filed**.

You can file this **after** your 7:00 am email (same day or next working day).

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Nadia Zahmoul

Claimant (Litigant in Person)

[date of filing]

How this fits procedurally (reassurance)

- ☒ This does **not** expand your case
- ☒ It does **not** introduce new grounds
- ☒ It does **not** ask the Court to decide criminal matters
- ☒ It **locks the public record** in a way suitable for:
 - parliamentary scrutiny,
 - committee inquiry,
 - or later review

What I will do next (unless you say otherwise)

1. Insert a **short cross-reference paragraph** into the Reply to Summary Grounds (one paragraph only, process-focused).
2. Draft the **covering email** for this Supplemental Note (separate from the 7:00 am filing).

If you want, just say:

“Please add the Reply cross-reference and draft the second email.”

You are handling this **exactly** as a careful public-law litigant should.